

C/M Shri Parmeshwar Deen Mishra Inter College v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 June 2023 · 2023:AHC:126077-DB · WRIT - C No. 20018 of 2023 · **Writ dismissed as withdrawn to pursue Clause 6.5.**

HEADNOTE

Writ petition dismissed as withdrawn on the petitioners' prayer to pursue the remedy under Clause 6.5 of the Electricity Supply Code, 2005. No adjudication of any supply dispute.

FACTUAL SUMMARY

The Committee of Management of Shri Parmeshwar Deen Mishra Inter College, with two others, petitioned the Allahabad High Court in Writ-C No. 20018 of 2023 against the State of Uttar Pradesh and four others. After some arguments, counsel for the petitioners asked to withdraw the writ, stating that the petitioners intended to pursue the remedy under Clause 6.5 of the Electricity Supply Code, 2005. On 12 June 2023 the Division Bench dismissed the petition as withdrawn. The order states no facts of any bill, assessment, or supply dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

withdrawal to pursue clause 6.5

HOLDING

On counsel's prayer that the petitioners intended to pursue the remedy under Clause 6.5 of the Electricity Supply Code, 2005, the writ petition was dismissed as withdrawn. The Court made no finding on any electricity bill or supply dispute. ¶ 1-2

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The petitioners withdrew the writ in order to pursue the Clause 6.5 remedy, and the Court dismissed the petition as withdrawn without deciding the supply dispute. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ANY ELECTRICITY BILL, ASSESSMENT, OR SUPPLY DISPUTE

Left untouched because the writ was dismissed as withdrawn before any merits hearing. ¶ 1-2